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The Minister for Primary and Secondary Education
P.O. Box 16375
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Date

November 22, 2022

Our reference

z2022-05547

Your letter dated

August 30, 2022

Your reference

33742259

Subject

Advice on the draft for the Implementation Regulation for the experiment on education-care arrangements

Dear Mr. Wiersma,

In your letter dated August 30, 2022, the Authority for Personal Data (AP) was consulted based on the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR), regarding the draft for the Regulation of the Minister for Primary and Secondary Education of [date], no. [Edoc-number], concerning the implementation of the Decision on the experiment with education-care arrangements (Implementation Regulation for the experiment on education-care arrangements) (hereinafter: the draft).

The AP has several comments on the draft and advises that these should be taken into account.

Scope of the draft

The (draft) Decision on the experiment with education-care arrangements¹ provides the possibility for the competent authority of a school or a collaboration² to deviate from legislation regarding educational time, content of education, location of education, and funding in education for students with complex support needs³. The aim of the experiment is to investigate whether this deviation leads to a broader offer of customization in the field of education and care.⁴ The

1 Decision of ... containing regulations for an experiment in the field of education-care arrangements, aimed at improving the quality, accessibility, and efficiency of education (Decision on the experiment with education-care arrangements).

2 Collaboration as referred to in the Primary Education Act or the Secondary Education Act 2020 (Article 1 of the (draft) Decision on the experiment with education-care arrangements).

3 Complex support needs: the support needs of a young person in the field of education and care that are so complex that they cannot be addressed in basic, secondary, special, and special secondary education (Article 1 of the (draft) Decision on the experiment with education-care arrangements).

4 Article 2 of the (draft) Decision on the experiment with education-care arrangements.

Date

November 22, 2022

Our reference

z2022-05547

minister⁵ monitors the experiment and prepares a report on the effectiveness and effects of the experiment.⁶ The monitoring and evaluation will be carried out by an external research agency.⁷

The present draft sets further rules regarding the implementation of the experiment. For instance, the draft specifies which data the competent authority, the collaboration, the college of mayor and aldermen, and the care provider must provide for the monitoring and evaluation research.⁸ The report on the effectiveness and effects of the experiment will not include any personally identifiable data.⁹

Advice

List of data provisions for the monitoring and evaluation research

The list of data that will be provided for the monitoring and evaluation research is not exhaustive. According to the explanation, it may be that the research agency requires additional data for the research.¹⁰ This assertion is not further substantiated.

Legislation regarding interventions in fundamental rights, as is the case here, must always be clear and precise according to established case law, and its application must be predictable for those to whom it applies.¹¹ Words such as "at least" are therefore contrary to this, as a concrete and clear delineation is then lacking. This is all the more undesirable since this concerns a vulnerable group, namely students with complex support needs, and sensitive personal data, namely health data.

The AP advises limiting the data provisions for the monitoring and evaluation research and substantiating the necessity of the relevant personal data in the explanation.

Grounds for exception to the prohibition on processing special personal data

For the monitoring and evaluation of the experiment, (also) special personal data will be processed, namely health data. The processing of special personal data is

5 The Minister of Education, Culture and Science, acting in accordance with the Minister of Health, Welfare and Sport (Article 1 of the (draft) Decision on the experiment with education-care arrangements).

6 Article 11, paragraphs one and two, of the (draft) Decision on the experiment with education-care arrangements.

7 Explanatory memorandum to the (draft) Decision on the experiment with education-care arrangements, p. 25.

8 Namely:

- a. the age of the participating youth;
- b. the type of education;
- c. the support needs of the participating youth; and
- d. the duration of the education-care arrangement (Article 4, paragraph three, of the draft).

9 Article 4, paragraph four, of the draft.

10 Explanation, p. 2.

11 Recital 41 of the GDPR.

Date

November 22, 2022

Our reference

z2022-05547

3/3

prohibited,¹² unless there is a ground for exception.¹³ The explanation does not indicate which exception ground is applicable.

The AP advises to specify in the explanation which exception ground is applicable and how the requirements set by the relevant exception ground are met.

Security

Article 4, third paragraph, under c, of the draft states that the research agency secures the data

against loss and unlawful processing. These requirements directly stem from the GDPR.¹⁴

Given the prohibition on rewriting¹⁵, the AP advises to delete Article 4, third paragraph, under c, of the draft.

Disclosure of the advice

The AP intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl as soon as the text of the (revised) draft is made public. The AP would like to know the expected timing of the disclosure as soon as this is known.

Sincerely,

Dutch Data Protection Authority,

Aleid Wolfsen

Chairman

¹² Article 9, first paragraph, of the GDPR.

¹³ Article 9, second paragraph, of the GDPR.

¹⁴ Article 5, first paragraph, under f, and Article 32 of the GDPR.

¹⁵ A regulation is binding in its entirety and is directly applicable in each member state (Article 288 of the Treaty on the Functioning of the European Union). This means that rewriting or converting a regulation is unnecessary and even prohibited.